HAMASPIK LEOVDEI HASHEM

The Intimate Path of Torah: HaMaspik LeOvdei HaShem, Chapter 1

Given Monday 16 February 2026 · HaMaspik LeOvdei HaShem

Sefer: Hamaspik l'Ovdei Hashem (Kifayat al-Abidin) — Rabbi Avraham ben HaRambam **Chapter:** Perek Aleph — "The Path of the Torah Which Has No End" **Edition:** Feldheim

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Context

- Full work = 2,500+ pages, four major sections; we are studying part of section two
- 13 chapters total — each covers a different character trait and how to work on it
- First three sections (which we don't have) = day-to-day halacha, regular behaviour → **Derech Ha'am**
- This remaining section = going beyond the basics → **Derech HaYachid** / **Chasidut**

The Two Paths: Overview

דרך התורה המתמשכת והולכת בלי גבול — the path of Torah has no end

- Divides into two distinct paths:

- **Derech Ha'am** (דרך העם) — the common path
- **Derech HaYachid** (דרך היחיד) — the unique/individual path

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Path 1: Derech Ha'am — The Common Path

- = fulfilling the 248 positive commandments + refraining from 365 negative commandments
- Each person according to their specific obligations

Obligations vary by category:

- **Gender:** Milah, Sukkah, Lulav — males only (women may do voluntarily)
- **Kehunah:** Temple service, dietary rules, marriage restrictions — Kohanim only
- **Time/place:** Mikdash laws — not applicable in Galut
- **Role:** "לא תשא פני דל ולא תהדר פני גדול" — applies to dayanim specifically

Requirements for walking this path correctly:

- Must **understand** what Hashem commanded to do and not do
- Must **consider** how each mitzvah relates to you personally
- Must **accept** the obligation and act on it
- Must **study** — without knowledge, you can't succeed
- Source: Avot — **אין בור ירא חטא** (an ignorant person cannot be God-fearing)

Titles earned on this path:

- **Tzaddik** — righteous
- **Tam** — wholesome
- **Yashar** — person of integrity
- **Sar Mera** — turns from evil
- **Kasher** (Rabbinic term) — appropriate/fitting
- Word "kasher" not in Torah or Nevi'im — only Ketuvim (Kohelet, Esther)
- Esther to Achashverosh: "וכשר הדבר" = it is appropriate

HaRambam's three levels of conduct:

1. **Mishpat** (justice) — enforceable in Beit Din
2. **Tzedakah** (appropriateness) — the right thing to do, not enforceable but obligatory

- E.g. returning a poor person's night garment used as collateral
- NB: English "charity" is imprecise — implies no obligation; Torah's tzedakah = moral duty

1. **Chesed** (kindness) — going beyond what is appropriate

- Doing everything commanded = tzaddik
- But **not yet a chasid** — that's the next level

Failure to keep this path:

- Called: rasha, poshea, averayan, moreh
- Label matches severity of failing
- = debasing yourself — not satisfying your nefesh sichliyit (intellectual soul)

Path 2: Derech HaYachid — The Unique Path

- = understanding the **goals and reasons** of mitzvot (תכלית המצוות וסודותיהן)
- = learning from the ways of **prophets and pious people**
- Title earned: **Kadosh** (holy), **Chasid** (pious)
- Rabbi Avraham's three-tier hierarchy: **Tzaddik → Chasid → Navi**

Importance of Ta'amei HaMitzvot (reasons for mitzvot):

- Comes directly from HaRambam:
- End of Hilchot Me'ilah: "It is correct to try to understand the laws and their reasons"
- End of Hilchot Temurah: even chukim deserve contemplation

אף על פי שכל חוקי התורה גזירות הם, ראוי להתבונן בהם

- On chukim: HaRambam **disagrees** that chukim have no reason — every mitzvah has a reason; a chok is simply harder to understand
- Temurah example: can't swap a dedicated animal even for a better one

ירדה תורה לסוף מחשבת האדם — Torah understands human rationalisation around money

- **Key insight:** understanding the reason → understanding the direction → knowing how to take the mitzvah further → Chasidut

Key characteristics of Derech HaYachid:

- Not everyone can reach it — "זוהי מדרגה שלא כל שומר תורה מגיע אליה"
- Not explicit in Torah — "לא נזכר חיובה במפורש"
- No human punishment for not reaching it — "לא יהיה נענש בידי אדם"

Examples: Tzaddik vs. Chasid

Shabbat

- **Tzaddik:** keeps Shabbat, avoids 39 melachot, Kiddush, meals ✓
- **Chasid:** additionally contemplates the meaning — creation, God as primal existence, renewal of the world

Tzitzit

- **Tzaddik:** wears tzitzit ✓
- **Chasid:** uses tzitzit as a tool to remember Hashem constantly → "והייתם קדושים לאלהיכם"

Kashrut

- **Tzaddik:** eats kosher, avoids treif ✓
- **Chasid:** understands the reason (Rambam, Moreh Nevuchim — not overindulging in food) → restrains even within permitted foods

Arayot

- **Tzaddik:** refrains from forbidden relationships ✓
- **Chasid:** understands the principle (minimise indulgence) → exercises additional restraint in permitted relationships too

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Levels: Derech Ha'am vs. Derech HaYachid

In Derech Ha'am — minimal variation:

- Mostly binary: keep Shabbat or don't; eat kosher or don't
- Differences mainly quantitative:
- Number of prohibitions (eating bugs = 4-6 issurim vs. basar b'chalav = 1)
- Frequency (wore garment without tzitzit once vs. every day)

Exception within Derech Ha'am:

- Some mitzvot have inherent gradation even at the common level:
- **Yirat Hashem** — fear of punishment (lower) vs. fear of His exaltedness (higher)
- **Ahavat Hashem** — love because He's good to me vs. unconditional deep love
- **Avodat HaLev** — service of the heart

In Derech HaYachid — vast variation:

רחבים תחומיה עד מאד ורחוקים זה מזה כרחוק מזרח ממערב

- Even in **one mitzvah**, even **one time** — enormous differences in depth

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The Mashal: Three Chasidim Keeping One Shabbat

Chasid 1 — General Contemplation

- Keeps Shabbat fully (baseline) +
- Thinks generally about Shabbat's purpose
- Reflects: heavens and earth created in six days; nothing before Hashem; God = primal existence

Chasid 2 — Detailed Contemplation

- Everything of Chasid 1 +
- Delves into specifics — universe from earth's centre to celestial spheres
- Reflects on wisdom of the Creator through details of creation
- Goes through each day of Bereishit
- = **Ma'aseh Bereishit** (Yesodei HaTorah) — science, astronomy, natural world as path to God's wisdom

Chasid 3 — Total Absorption / Ecstatic Encounter

- Everything of Chasid 2 +
- Reaches **true inner holiness** (kedushah penimit amitit)
- Filled with joy; shining countenance
- Fully appreciates the bond (zikah) between himself and God
- Understands Shabbat's purpose: **ביני ובין בני ישראל אות היא לעולם**
- **Refrains from eating/drinking** — not ascetic choice, but genuinely absorbed
- Does not hear sounds; does not register what he sees

  soul satisfied like richest foods — **כמו חלב ודשן תשבע נפשי**
- Parallel: HaRambam, end of Hilchot De'ot — lovesick for Hashem, **כי חולת אהבה אני**

How can not eating on Shabbat be permitted?

- Gemara Pesachim: Mar brei d'Ravina fasted every day except Shavuot, Purim, Erev Yom Kippur
- Rabbeinu David: not a formal fast — passion for Torah so great he forgot to eat until night
- Even on Shabbat: Shabbat requires **oneg** — and this was his oneg
- Shulchan Aruch siman 288: if fasting is your enjoyment, you may fast on Shabbat
- **Shabbat ≠ obligation to eat; Shabbat = obligation to experience delight**
- Analogy: absorbed in a book/film → forget you're hungry → not conscious refusal, thought simply doesn't arise

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Key Term: Pegiah (פגיעה) — Encounter

- Arabic original: **wasul** → Hebrew: **pegiah** = to encounter (cf. ויפגע במקום)
- **Chasidut is experiential** — not just performative
- Greater Chasidut = greater pegiah = deeper encounter with God
- All character traits (perishut, anavah, etc.) have many levels of pegiah
- Humility of Moshe ≠ humility of other tzaddikim; perishut of Eliyahu ≠ perishut of other nevi'im

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Q&A Points

Is excessive chesed a problem?

- **In human relationships — yes:**

implies there is also bad chesed — גומל חסדים **טובים**

- "Gemilut chasadim" from "gamal" (camel) — best chesed = making someone independent
- Torah calls sibling incest "chesed" (Acharei Mot) — natural love crossing into destructive territory
- **With HaKadosh Baruch Hu — possibly:** if chasidut comes at expense of other obligations; needs further thought

Are we commanded to go beyond?

Chachamim derive lifnim mishurat hadin from this — **ועשית הטוב והישר**

- Falls under **tzedakah** (appropriateness), not chasidut
- We don't appear to be explicitly commanded to be chasidim
- Chasidut = voluntary spiritual aspiration

Gadol metzuveh ve'oseh?

- Applies to derech ha'am
- Chasidut = realm of the **mitnadeiv** (volunteer) beyond obligation

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Chapter 1 Conclusion

- Chasidut can **only** be pursued when basics (Derech Ha'am) are firmly in place
- Cannot be a chasid without first being a tzaddik

Summary Table

	Derech Ha'am	Derech HaYachid
Involves	Fulfilling all commandments	Understanding reasons + going beyond
Applies to	Every Jew	Unique individuals aspiring to closeness
Title	Tzaddik, Kasher, Yashar	Kadosh, Chasid
Variation	Minimal (quantitative)	Vast — "east to west"
Source	Explicit in Torah	Inner meaning, not explicit
Punishment	Yes	No human punishment
Nature	Revealed (gluyah)	Inner/hidden (penimit)

Next week: Finish Chapter 1 + begin Chapter 2, be'ezrat Hashem.

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